‘[t]he Tribunal may pass upon any person convicted by it any sentence authorized by law . . .’. Nevertheless, ‘the judgment of the Tribunal shall be final and conclusive’ and remarkably ‘there shall be no appeal from any order or sentence of the Court’.[10]

Once the trial before the special tribunal began, the ramshackle proceedings soon ran into difficulties. Within two weeks, two of the three judges had to be replaced. This meant only one judge had heard all the evidence before pronouncing the sentence of death. Of the evidence eventually called, the 457 prosecution witnesses were not allowed to be cross-examined. The government relied on the evidence of former conspirators now turned turncoats. But the accused were allowed to cross-examine only one of the five approvers. In the circumstances, the accused refused to attend proceedings. The proceedings ran for five months, from 5 May 1930. On 7 October 1930 a sentence of death was announced on Bhagat Singh, Sukhdev and Rajguru. The ordinance lapsed. The trial was over. It never had any legal or constitutional support in the first place. The passing of a sentence of death was its only purpose.